

SENATE BILL No. 113

DIGEST OF INTRODUCED BILL

Citations Affected: IC 3-10-1-31.1.

Synopsis: Preservation of election material. Extends the period within which certain election material must be preserved from 22 months to 60 months.

Effective: July 1, 2026.

Schmitt

December 9, 2025, read first time and referred to Committee on Elections.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 113

A BILL FOR AN ACT to amend the Indiana Code concerning elections.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 3-10-1-31.1, AS AMENDED BY P.L.153-2024,
2 SECTION 9, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 31.1. (a) The inspector of each precinct shall
4 deliver the bags required by section 30(a) and 30(c) of this chapter in
5 good condition, together with poll lists, tally sheets, and other forms,
6 to the circuit court clerk when making returns.
7 (b) Except for unused ballots disposed of under IC 3-11-3-31 or the
8 copies of the affidavits received by the county election board under
9 IC 3-14-5-2 for delivery to the prosecuting attorney, the circuit court
10 clerk shall seal the ballots (including provisional ballots) and other
11 material (including election material related to provisional ballots)
12 during the time allowed to file a verified petition or cross-petition for
13 a recount of votes or to contest the election. Except as provided in
14 subsection (c) and notwithstanding any other provision of state law,
15 after the recount or contest filing period, the election material,
16 including election material related to provisional ballots (except for
17 ballots and provisional ballots, which remain confidential) shall be



made available for copying and inspection under IC 5-14-3. The circuit court clerk shall carefully preserve the sealed ballots and other material for ~~twenty-two (22)~~ **sixty (60)** months, ~~as required by 52 U.S.C. 20701,~~ after which the sealed ballots and other material are subject to IC 5-15-6 unless an order issued under:

- (1) IC 3-12-6-19 or IC 3-12-11-16; or
- (2) 52 U.S.C. 10301;

requires the continued preservation of the ballots or other material.

(c) If a petition for a recount or contest is filed, the material for that election remains confidential until completion of the recount or contest.

(d) Upon delivery of the poll lists, the county voter registration office shall unseal the envelopes containing the poll lists, inspect the poll lists, and update the registration records of the county. The county voter registration office shall use the poll lists and information on affidavits executed under IC 3-10-10, IC 3-10-11, or IC 3-10-12 to update the registration record to include the voter's voter identification number if the voter's voter identification number is not already included in the registration record. Upon completion of the inspection, the poll list and affidavits shall be preserved with the ballots and other materials in the manner prescribed by subsection (b) for the period prescribed by subsections (b) and (c).

(e) In addition to the poll lists described in subsection (d), the county voter registration office shall use the affidavits described by IC 3-10-10-7, IC 3-10-11-4, and IC 3-10-12-3.4 to update the registration records of the county as soon as the affidavits are delivered to the county voter registration office.

(f) The county voter registration office shall retain a voter's paper registration records associated with the address at which the voter is registered to vote until all of the following are satisfied:

- (1) The voter's registration at the address stated in the voter's registration application has been canceled.
- (2) The general election immediately following the cancellation of the voter's registration under subdivision (1) has occurred.
- (3) Twenty-four (24) months have elapsed following the general election described in subdivision (2).

(g) This subsection does not apply to ballots, including provisional ballots. Notwithstanding subsection (b), if a county voter registration office determines that the inspection and copying of precinct election material would reveal the political parties, candidates, and public questions for which an individual cast an absentee ballot, the county voter registration office shall keep confidential only that part of the election material necessary to protect the secrecy of the voter's ballot.



1 In addition, the county voter registration office shall keep confidential
 2 information contained in material related to provisional ballots that
 3 identifies an individual, except for the individual's name, address, and
 4 birth date.

5 (h) After the expiration of the period described in subsection (b) or
 6 (c), the ballots may be destroyed in the manner provided by
 7 IC 3-11-3-31 or transferred to a state educational institution as
 8 provided by IC 3-12-2-12.

9 (i) This subsection applies to a detachable recording unit or
 10 compartment used to record a ballot cast on a direct record electronic
 11 voting system. After the time allowed to file a verified petition or
 12 cross-petition for a recount of votes or to contest the election, the
 13 circuit court clerk shall transfer the data contained in the unit or
 14 compartment to a disc or other recording medium. After transferring
 15 the data, the clerk may clear or erase the unit or compartment. The
 16 circuit court clerk shall carefully preserve the disc or medium used to
 17 record the data for ~~twenty-two (22)~~ **sixty (60)** months, ~~as required by~~
 18 ~~52 U.S.C. 20701~~, after which time the disc or medium may be erased
 19 or destroyed, subject to IC 5-15-6, unless an order requiring the
 20 continued preservation of the disc or medium is issued under the
 21 following:

22 (1) IC 3-12-6-19.

23 (2) IC 3-12-11-16.

24 (3) 52 U.S.C. 10301.

25 (j) This subsection applies to a county using an electronic poll book.
 26 After each election, the county shall save all data recorded on the
 27 electronic poll book and any information stored on the dedicated,
 28 private server required under IC 3-11-8-10.3(b)(4). The circuit court
 29 clerk shall carefully preserve the disc or medium used to record the
 30 data for ~~twenty-two (22)~~ **sixty (60)** months, ~~as required by 52 U.S.C.~~
 31 ~~20701~~, after which time the data may be erased or destroyed, subject
 32 to IC 5-15-6, unless an order requiring the continued preservation of
 33 the data is issued under the following:

34 (1) IC 3-12-6-19.

35 (2) IC 3-12-11-16.

36 (3) 52 U.S.C. 10301.

37 (k) This section does not prohibit county election officials from
 38 performing post-election audits, as authorized by statute.

39 (l) This section does not prohibit county election officials from
 40 performing a duty under IC 3-11.7.

